

FORM No. HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE
JUDICIAL DEPARTMENT
W.P.No. 20532 of 2019

Mirza Rauf Ahmed.		Vs.	Addl. District Judge, etc.
Sr. No. of order/ proceedings	Date of order/ Proceeding	Order with signature of Judge, and that of Parties' counsel, where necessary	
	09.04.2019.	Mr. Muhammad Abraiz Anjum, Advocate for petitioner.	

The ground raised by the petitioner through this petition to challenge the eviction order dated 11.10.2018 passed by learned Special Judge (Rent), Sialkot/trial court and order in appeal dated 22.03.2019 passed by Addl. District Judge, Sialkot, is that the rent agreement is an un-registered document, therefore, the petitioner was required to deposit 10% penalty in terms of Section 9 of the Punjab Rented Premises Act, 2009 before any proceedings could be initiated against the petitioner, therefore, the orders passed by the courts below are liable to be set-aside.

2. Heard. Record perused.
3. From the initial order of the trial court dated 21.05.2018 reproduced below it is observed that on the said date the learned trial court directed the respondent No.3 to deposit penalty @ 10% in terms of afore-referred Section, which order has been complied with by the respondent, which is apparent from the noting on the border of the said order.

***“Let notice to the respondent in the prescribed form for his appearance in court on 01.06.2018 through process server, registered post acknowledgement due and courier service in terms of sub-section (1) of Section 21 of the Punjab Rented Premises Act, 2009. The requisites of prescribed notice shall be fulfilled within the meaning of sub-section (2) of ibid.*”**

Since, on the face of instant ejectment petition, the tenancy is not conform to the provision of aforesaid Act, so, he is also directed to deposit a fine equivalent to 10% of the annual value of the rent of the premises in the Government treasury in terms of Section 9 (b) of PRPA till next date. ”

On 01.06.2018, the next date of hearing, the petitioner himself appeared in the court through his counsel and filed his power of attorney, the court adjourned the matter to file application for leave to contest as well as receipt of payment of penalty on 11.06.2018, on which date the said receipt was produced, therefore, the objection raised by the petitioner that 10% penalty has not been deposited is negated from the record and this ground for setting-aside of the afore-referred impugned orders is not available to the petitioner. Besides, leave to contest was refused to the petitioner on the ground that tenancy had expired. The petitioner raised plea for extension of tenancy through oral agreement, however, even if tenancy was extended, it is by now settled that oral extension is on month to month basis and cannot be treated as extension for more than one month at a time and, therefore, this ground raised by the petitioner that tenancy is still existing is baseless. Besides, the petitioner has raised a question that ‘Pagri’ had been paid by the petitioner, which question has not been determined, however, from the perusal of the agreement between the parties it is seen that ‘Pagri’ has not mentioned therein. Subsequently, if ‘Pagri’ has been settled between the parties, no documentary prove of the same is available on the record and like the plea of extension of tenancy orally, the same is also based on oral

assertion, therefore, the said ground could also not form the basis for setting aside the ejectment orders passed against the petitioner on the ground of expiry of tenancy. No illegality, perversity or erroneous exercise of jurisdiction is found in the impugned orders, whereby the same could be declared to have been passed without lawful authority. Consequently, no ground is made out for exercising constitutional jurisdiction of this Court to set-aside the same, hence, this petition is **dismissed**.

(Muzamil Akhtar Shabir)
Judge